MATAY KINGDOM (PVT) LTD
and
COOLTWELVE INVESTMENTS (PVT) LTD
and
BRUCE TARUVINGA

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE; 3 November 2025 and 15 June 2026

Civil Trial

K Mabharani Chirege,for the plaintiff
A H Muzah,for the defendants

TAKUVA J: Plaintiff issued summons against both defendants. Plaintiff's claim is for;

a) Payment of US$25657.50 and
b) The sum of ZWL 120 00.00
c) Interest at the rate of 10% per annum calculated from the 1st September 2022 until the debt is paid in full.
d) Costs of suit on the attorney – client scale.

BACKGROUND FACTS

In or about July 2021, plaintiff and the first defendant entered into a lease agreement in terms of which the plaintiff leased to the first defendant office space known as SMATSATSA BLOCK B, Ground Flour measuring 315 square metres for fine years at a total cost of USD 2205 per month. The first defendant breached the lease by failing to pay the rent on the due date and upon demand. Defendants signed an acknowledgment of debt in which the second defendant bound himself as surety and co-principal debtor with first defendant for the due and punctual payment of the debt.

As at the date of the acknowledgment of debt, the defendants were indebted to the plaintiff as follows;

a) USD14627.50 and

b) ZWL 120 000.00

It is not in dispute that these amounts were owing as at 31st July 2022. Despite the defendants making an undertaking to pay the debt by 31st August 2022, the defendants failed to pay. Defendants remained in occupation of the premises after the period governed by the acknowledgment of debt, i.e from August to December 2022 accumulating USD2205.00 per month. Accordingly, between August to December 2022, the defendants accrued a further USD11025.00 in unpaid rentals. Despite being fully aware of their indebtedness to the plaintiff, defendants refused to pay and refused to vacate the premises forcing plaintiff to seek legal recourse.

The defendants entered appearance to defend and filed a plea together with a counter claim. The second defendant denied being the *alter ego* of the first defendant. It was admitted that defendants were unable to pay the amount due to the fact that they were prevented from using their offices from July 2022 onwards. Defendants contended that because of this lock out, rentals for the months of July 2022 to January 2023 are not due. It was defendant's submission that plaintiff caused the attachment and removal of its goods from the leased property.

DEFENDANTS' CLAIM IN RECONVENTION

Defendants alleged that as a result of the wrongful and unlawful actions of the plaintiff, the defendants suffered damages calculated as follows;

a) Loss of earnings/business in the sum of US$100 000.00.

b) Loss of valuable personal property in the sum of USD50 000.00.

It is defendants' averment that on the 4th of January 2023, the plaintiff wrongfully and fraudulently represented to the Magistrates Court that it had jurisdiction to entertain the dispute between the parties in respect of payment or arrear rental and caused the attachment and removal of defendants' property from the leased premises. Thereafter plaintiff forcefully prevented defendants from entry into leased premises and by unprocedural means caused their eviction from the leased premises.

The following issues were agreed to at a Joint Trial Conference.

1. Whether or not the defendants are indebted to the plaintiff as alleged.
2. Whether or not the plaintiff denied the defendants access into the leased premises.

3. Whether or not the plaintiff ie in current possession and or control of the defendant's property.
4. Whether or not the defendants suffered any damages arising from being denied access from the leased premises and if so, the quantum of such damages.
5. Whether or not defendants are entitled to costs on a higher scale.

Onus

On the plaintiff on issue and on the defendants on issues 2-5

ADMISSIONS SOUGHT AND MADE

1. The defendants admit that they owe the plaintiff the sum of USD10627 plus ZWL120 000. The period in contention is thus August 2022 to January 2023."

THE EVIDENCE

PLAINTIFF'S CASE

The plaintiff called its Operations Manager one Mrs SOUTTER who testified that

1. She is a signatory to the lease agreement between the parties.
2. That the defendants voluntarily vacated the premises in January 2023.
3. That the defendants had their own electricity meter such that they governed their own usage of electricity.
4. That neither the witness nor any agent of the plaintiff locked the defendants out of the premises.
5. That the plaintiff obtained from the Magistrates Court an order for Rent Attachment -See Annexures "G and D."
6. That the Messenger of Court sold the attached property and the proceeds thereof could only cover storage fees.
7. That the plaintiff is not in possession of the defendants' assets.
8. That the defendants did not take any action to have the order rescinded so as to have their property restored to them since January 2023.

THE DEFENDANTS CASE

It was second defendant's evidence that he owed the plaintiff but not the amount claimed. He acknowledged the sum of US$10627.00 plus ZWL 120 000.00. He also stated that he

was not supposed to pay rentals from August 2022 to January 2023 as he had been barred from using the premises by the plaintiff's agents. Defendants claim to have suffered damages and incurred losses amounting to USD150 000.00 from being denied access to the leased premises.

ANALYSIS

As regards the first issue the defendants admitted that they owe plaintiff USD10627.50. The sole issue is whether or not they owe the plaintiff the sum of USD11025.00. It must be noted that the dispute is not on the figure but on whether or not defendants should be exempted from paying it on some legal justification. Defendants seem to want to rely on impossibility to pay due to plaintiff's illegal lockout. No evidence was placed before the court to substantiate the lockout. What is clear from the evidence is that defendants struggled to pay rentals for the leased premises.

Defendants' claim that they were denied access to the premises has not been substantiated. Also, plaintiff's evidence that defendants had a separate electricity meter was not challenged at all. In my view, the fact that defendants failed to enforce their rights in terms of their lease to have the "lockout" uplifted demonstrates that there was never such a lockout. In that regard, I find that plaintiff has discharged the onus that it is owed the amount relating to rentals for the period August 2022 to January 2023.

The third issue is simple to resolve. The plaintiff is not currently in possession of defendants' property. As appears from Annexure "D" the Messenger of Court sold the attached property belonging to the defendants in terms of a Court Order. The defendants not surprisingly failed to take legal action to reverse the sale.

In light of my findings above, it is unnecessary to consider whether or not defendants suffered any damages arising from being denied access to the leased property, suffice to mention that the defendants failed to place before the court any credible evidence in support of their counter claim for alleged financial loss and damages.

It remains unclear how such alleged loss was quantified, what formular or method of quantification was employed and on what basis the figures advanced were arrived at. No documentary proof, such as business records, receipts, bank statements, or ledgers, was produced to substantiate the existence of the shops or the income purportedly generated

therefrom. Where such cogent evidence is unavailable, whether in the form of primary records or expert testimony, the defendants' allegation of financial loss remain mere bald allegation or assertions which fall far short of discharging the onus of proof on a balance of probabilities.

At law, a court can not grant a claim for damages to a party that has failed to produce relevant evidence upon which a proper assessment of loss could have been made. In *EBRAHIM* v *PITTMAN* No 1995(1) ZLR 176H-188D, the court held that;

> "It is not competent for a court to embark upon conjecture in assessing damages where there is no factual basis in evidence or inadequate factual basis, for an assessment…"

Accordingly, I take the view that the defendants suffered no damages.

Issue number five (5) suffers the same as costs follow the cause.

The defendants failed to refute by credible evidence the plaintiff's submissions that

(i) They were still in occupation of the leased property from August 2022 to January 2023 and that they controlled their own electricity flow and meter like any other tenant in the complex.

(ii) They are indebted to the plaintiff.

(iii) They breached the agreement by failing to pay rentals as and when they fell due.

An unrefuted allegation is taken as having been admitted See *Fawcett Security Operations* v *Director of Customs and Excise* 1993(2) ZLR 121 (SC).

In *casu*, the evidence shows that the defendants voluntarily vacated the premises, acknowledged their failure to meet their rental obligations. The property they claim to be in plaintiff's custody was in fact properly attached and sold by the Messenger of Court, there for the plaintiff can not be held liable for the alleged loss.

The defendants, in my view, failed to prove their case on a balance of probabilities, their counter claim is baseless and devoid of merit. It must fall.

In the result, the defendants are hereby ordered to pay to the plaintiff jointly and severally, the one paying the other to be absolved, the following amounts:

(a) USD 10627.50

(b) USD 11025.00 being arrear rentals for the period August to December 2023

(c) ZWL 120 000.00

(d) Defendants Counter Claim be and is hereby dismissed in its entirety and

(e) Defendants to pay plaintiff's costs of suit jointly and severally, the one paying the other to be absolved.

TAKUVA J:……

Chirenje Legal Practitioners, plaintiff's legal practitioners
Chivore Dzingirai Group of Lawyers, defendant's legal practitioners